

25STCV10828 25STCV10828

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C06%2F23%2F2026

Source SHA-256: 9260cc91bf03ff47f68b0accc834975f3efb69d8a56723bcc40421b9d0c32c6c

Case Number: 25STCV10828 Hearing Date: June 23, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

CARLOS RENE VALDEZ,

Plaintiff,

v.

ATTORNEY GENERAL ROB BONTA OF THE STATE OF CALIFORNIA, et

al.

Defendants.

Case No: 25STCV10828

Hearing Date: June 23, 2026

Calendar Number: 7

Defendant The People of The State of California, acting by and

through the Department of Transportation, erroneously sued as The State of California, specially appears and moves to quash service of summons and complaint, arguing that it was not properly served.

The

motion is GRANTED. The service the plaintiff allegedly executed on the defendant on January 15, 2026, is hereby quashed.

Background

On April 11, 2025, Plaintiff

Carlos Rene Valdez ("Plaintiff") filed this action against Defendant Attorney

General Rob Bonta of the State of California. Plaintiff subsequently dismissed Attorney

General Rob Bonta.

On August 14, 2025, Plaintiff

filed the operative Second Amended Complaint ("SAC") against The People of The

State of California, acting by and through the Department of Transportation

("Defendant"), and Does 2 through 20, asserting causes of action for (1)

dangerous condition of public property, (2) failure to perform a mandatory

duty, and (3) negligence.

On August 15, 2025, Plaintiff

filed Proof of Service of Summons claiming he served Defendant with copies of

the Summons and SAC.

On September 15, 2025, Defendant

filed a motion to quash service, arguing that it was not properly served. The motion was unopposed.

On December 12, 2025, the Court

granted the motion, finding that Plaintiff's Proof of Service of Summons contained errors, including claiming that the party served was an individual defendant even though Defendant was a public entity.

On March 10, 2026, Plaintiff filed

a second Proof of Service of Summons claiming to have served Defendant through substituted service on January 15, 2026.

On March 13, 2026, Defendant filed

the instant motion to quash the January 15, 2026 service, arguing that Plaintiff did not properly serve Defendant.

On April 20, 2026, Plaintiff filed

another Proof of Service of Summons stating that it served Defendant on April 20, 2026, through personal service.

On June 12, 2026, Plaintiff filed

his opposition to the instant motion. No reply has been filed.

Legal Standard

A defendant, on or before the last day of her

time to plead or within any further time that the court may for good cause

allow, may serve and file a notice of motion to “quash service of summons on

the ground of lack of jurisdiction of the court over ... her.” (Code

Civ. Proc., § 418.10, subd. (a).)

“In the absence of a voluntary submission to the

authority of the court, compliance with the statutes governing service of

process is essential to establish that court's personal jurisdiction over

a defendant. [Code Civ. Proc.] § 410.50.” (Dill v. Berquist Construction Co. (1994)

24 Cal.App.4th 1426, 1439 (Dill) [footnote omitted].)

“When a defendant challenges [personal]

jurisdiction by bringing a motion to quash, the burden is on the plaintiff to

prove the existence of jurisdiction by proving, inter alia, the facts requisite

to an effective service.” (Dill, supra, 24 Cal.App.4th at

pp. 1439–1440.)

Discussion

As an initial matter, the Court

notes that no proof of service of Plaintiff's opposition has been submitted

with the opposition or filed separately. Therefore, it is unclear whether

Defendant received notice of the opposition. Nevertheless, because Plaintiff's

arguments are unpersuasive, the Court will proceed on the merits instead of continuing the hearing and requiring Plaintiff to file proof of service of the opposition papers.

“A summons may be served on a

public entity by delivering a copy of the summons and of the complaint to the clerk, secretary, president, presiding officer, or other head of its governing body.” (Code Civ. Proc., § 416.50, subd. (a).) “As used in this section, ‘public entity’ includes the state and any office, department, division, bureau, board, commission, or agency of the state” (Id. subd. (b).)

Defendant moves to quash the

service that Plaintiff alleges he executed on January 15, 2026, arguing (among other things) that the substituted service was incomplete because Plaintiff failed to mail copies of the relevant paperwork to Defendant. (See Proof of Service of Summons, filed March 10, 2026 (“3/10 POS”), pp. 1-2 [Item 5c is left blank]; see also Code Civ. Proc., § 415.20, subd. (a) [requiring that substituted service must be followed by “mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left”].) Defendant also argues that Plaintiff failed to attach a declaration of diligence outlining the actions taken to first attempt personal service. (See 3/10 POS, [leaving Item 5b(5)

blank].)

In his opposition, Plaintiff does

not dispute that his service on January 15, 2026, was defective. Instead, he “requests

that the Court deny the motion, or deem any technical defect cured based on

Defendant’s actual notice, participation, written communications, appearances,

and lack of prejudice.” (Opposition, p. 2:10-12.)

“The notice requirement is not

satisfied by actual knowledge of the action without service conforming to the

statutory requirements, which are to be strictly construed.” (Taylor-Rush v.

Multitech Corp. (1990) 217 Cal.App.3d 103, 111.) Therefore, even if it is

true that Defendant had notice of the lawsuit, that does not excuse Plaintiff

from complying with service requirements. In addition, there is no “lack of

prejudice” exception to the service requirements.

For those reasons, the Court

grants Defendant’s motion to quash the alleged substituted service Plaintiff

executed on January 15, 2026. In so ruling, however, the Court has not made any

determination regarding whether the Proof of Service of Summons Plaintiff subsequently

filed on April 20, 2026, shows proper service as that issue has not been

brought before the Court.